

SENTENCING ORDER

IN THE CIRCUIT COURT OF WHITE COUNTY, ARKANSAS,

17th JUDICIAL DISTRICT 2nd DIVISION

On OCTOBER 17, 2023 the Defendant appeared before the Court, was advised of the nature of the charge(s), of Constitutional and legal rights, of the effect of a guilty plea upon those rights, and of the right to make a statement before sentencing.

ELECTRONICALLY FILED

White County Circuit Court
Sara Brown-Carlton, Circuit Clerk
2023-Oct-23 12:38:26
73CR-21-584
C17D02 : 2 Pages

Offender

Court Info

Legal Statement

Offense #1

Defendant
[Last, First, MI] LOY, CECELIE DIANE **DOB** 12/14/1990 **Sex** ☐ Male ☒ Female **Total Number of Counts** 1

SID # 4 2 1 1 6 8 4 **Race & Ethnicity** ☒ White ☐ Black ☐ Asian ☐ Native American ☐ Pacific Islander
☐ Unknown ☐ Other ☐ Hispanic

Supervision Status at Time of Offense NONE

Judge MARK A. PATE **File Stamp**

Prosecuting Attorney/Deputy NORENE SMITH

Defendant's Attorney REBECCA FERGUSON ☒ Private ☐ Public Defender
☐ Pro Se ☐ Appointed

Change of Venue ☐ Yes ☒ No
If yes, from:

☐ Pursuant to A.C.A. §§16-93-301 et seq., or ☐ §§ this Court, without making a finding of guilt or entering a judgment of guilt and with the consent of the Defendant defers further proceedings and places the Defendant on probation.

There being no legal cause shown by the Defendant, as requested, why judgment should not be pronounced, a judgment: is hereby entered against the Defendant on each charge enumerated, fines levied, and court costs assessed. Defendant was advised of the conditions of the sentence and/or placement on probation and understands the consequences of violating those conditions. The Court retains jurisdiction during the period of probation/suspension and may change or set aside the conditions of probation/suspension for violations or failure to satisfy Arkansas Division of Community Correction (A.C.C) rules and regulations.

☐ of conviction is hereby entered against the Defendant on each charge enumerated, fines levied, and court costs assessed. The Defendant is sentenced to the Arkansas Division of Correction (A.D.C.) for the term specified on each offense shown below.

Defendant made a voluntary, knowing, and intelligent waiver of the right to counsel. ☐ Yes ☒ No

A.C.A. # of Offense/ Name of Offense+ 5-14-125(a)(4)(A)(iv) SEXUAL ASSAULT IN THE SECOND DEGREE **Case #** 73CR2021-584

A.C.A. # of Original Charged Offense 5-14-124(a)(1)(D) **ATN** WHT005213600 **Offense was** ☐ Nolle Prossed ☐ Dismissed ☐ Acquitted

Appeal from District Court ☐ Yes ☒ No **Probation/SIS Revocation+** ☐ Yes ☒ No

Offense Date 10/01/2020-10/31/2020 **Offense is** ☒ Felony ☐ Misd. ☐ Viol. **Offense Classification** ☐ Y ☐ A ☒ B ☐ C ☐ D ☐ U

Number of Counts: 1 **Criminal History Score** 0 **Seriousness Level** 6 **Defendant** ☐ Attempted ☐ Solicited
☐ Conspired to commit the offense

Presumptive Sentence ☒ Prison Sentence of 24 to 60 months ☐ Community Corrections Center ☐ Alternative Sanction

Defendant Sentence* (see Page 2)
Imposed ☐ ADC ☐ Jud. Tran. ☐ County Jail months
If probation or SIS accompanied by period of confinement, state time: 120 days or months.

 months
Sentence was enhanced months, pursuant to

Probation 96 months
A.C.A. §§
Enhancement(s) is to run: ☐ Concurrent ☐ Consecutive.

SIS months
Other ☐ Life ☐ LWOP ☐ Death
Defendant was sentenced as a habitual offender, pursuant to A.C.A. §5-4-501, subsection
☐ (a) ☐ (b) ☐ (c) ☐ (d)

Victim Info# (See page 2) ☐ N/A **Age** 17 **Sex** ☒ Male ☐ Female **Race & Ethnicity** ☒ White ☐ Black ☐ Asian ☐ Native American
[Multiple Victims] ☐ Yes ☒ No ☐ Pacific Islander ☐ Other ☐ Unknown ☐ Hispanic

Defendant voluntarily, intelligently, and knowingly entered a
☒ negotiated plea of ☒ guilty or ☐ nolo contendere.
☐ plea directly to the court of ☐ guilty or ☐ nolo contendere.
Defendant:
☐ was sentenced pursuant to ☐ §§16-93-301 et seq., or ☐ other §§
☐ entered a plea and was sentenced by a jury.
☐ was found guilty by the court & sentenced by ☐ court ☐ jury.
☐ was found guilty at a jury trial & sentenced by ☐ court ☐ jury.
☐ was found guilty of lesser included offense by ☐ court ☐ jury.

Sentence is a Departure ☐ Yes ☒ No **Sentence Departure is** ☐ Durational or ☐ Dispositional.
If durational, state how many months above/below the presumptive sentence:

Departure Reason (See page 2 for a list of reasons)

Aggravating # or **Mitigating #** . For Agg. #17 or Mit. #9,
or if departing from guidelines, please explain:

Sentence will run: ☐ Consecutive ☐ Concurrent
to Offense # or
Case #

Defendant's Full Name: LOY, CECELIE DIANE

Sex Offenses

Defendant has been adjudicated guilty of an offense requiring sex offender registration and must complete the Sex Offender Registration Form and pay the Mandatory Sex Offender Fee of \$250. ☒ Yes ☐ No

Defendant has committed an aggravated sex offense as defined in A.C.A. §12-12-903. ☐ Yes ☒ No

Defendant is alleged to be a sexually dangerous person and is ordered to undergo an evaluation at a facility designated by A.D.C. pursuant to A.C.A. §12-12-918. ☐ Yes ☐ No

Defendant, who has been adjudicated guilty of an offense requiring registration, has been adjudicated guilty of a prior sex offense under a separate case number. ☐ Yes ☒ No
If yes, list prior case numbers:

Domestic Violence Offenses

Defendant has been adjudicated guilty of a domestic-violence related offense and **must** pay additional court costs of \$25 pursuant to §16-10-305. Yes ☐ No ☒

Defendant was originally charged with a domestic-violence related offense. ☐ Yes ☒ No
If yes, state the A.C.A. # of the offense:

If yes to either question, identify the relationship of the victim to the Defendant by offense number.

DNA Sample/Qualifying Offense

Defendant has been adjudicated guilty of a qualifying offense or repeat offense (as defined in A.C.A. §12-12-1103). ☒ Yes ☐ No
Defendant is ordered to have a DNA sample drawn at ☒ A.C.C. facility ☐ the A.D.C. or ☐ other _____

Drug Crime

Defendant has been convicted of a drug crime, as defined in §12-17-101. ☐ Yes ☒ No

Court Costs	\$ 150.00
Fines	\$ 1000.00
Booking/Admin Fees (\$40)	\$ 40.00
Drug Crime Assessment Fee (\$125)	\$
DNA Sample Fee (\$250)	\$ 250.00
Children's Advocacy Center Fund Fee	\$ 100.11
Public Defender User Fee	\$
Public Defender Attorney Fee	\$
Other (explain) WARRANT	\$ 50.00
SEX OFFENDER	\$250.00

Restitution \$ _____ Payable to [If multiple beneficiaries, give names and payment priority] _____

Terms

☐ Due Immediately
☒ Installments of: \$100/MO FIRST INSTALLMENT DUE 11/16/2023
☐ Payments must be made within _____ days of release from A.D.C.
☐ Upon release from confinement, Defendant must return to court to establish payment of restitution
☐ Restitution is joint and several with co-defendant(s) who was found guilty - List name(s) and case number(s) _____

Defendant was convicted of a target offense(s) and is sentenced pursuant to provisions of the Community Punishment Act. ☐ Yes ☒ No

The Court hereby orders a judicial transfer to the AR Division of Community Correction. ☐ Yes ☒ No

Pursuant to the Community Punishment Act, the Defendant shall be eligible to have his/her records sealed. ☐ Yes ☒ No

Extended Juvenile Jurisdiction Applied

☐ Yes ☒ No

JAIL TIME CREDIT
120 DAYS

TOTAL TIME TO BE SERVED FOR ALL OFFENSES
In months: _____ ☐ Life ☐ LWOP

Death Penalty
☐ Yes ☒ No

If Yes, State Execution Date:

DEFENDANT IS ASSIGNED TO: ☐ ADC ☐ ADC, Admin.Transfer ☐ CCC ☐ COUNTY JAIL ☒ PROBATION ☐ SIS
NOT Authorized

Conditions of disposition or probation are attached. ☐ Yes ☒ No

A copy of the pre-sentence investigation on sentencing information is attached ☐ Yes ☒ No ☐ Defendant is subject to delayed release pursuant to A.C.A. § 5-4-405.

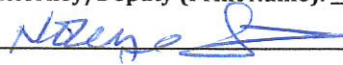
A copy of the Prosecutor's Short Report is attached ☐ Yes ☒ No

DEFENDANT WAS INFORMED OF APPELLATE RIGHTS ☐ Yes ☒ No **Appeal Bond \$**

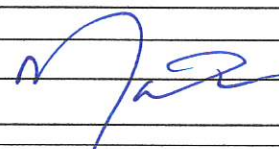
The County Sheriff is hereby ordered to: ☐ transport the defendant to county jail ☐ take custody for referral to CCC ☐ transport to ADC

Defendant shall report to ACC probation officer for report date to CCC ☐ Yes ☒ No

Prosecuting Attorney/Deputy (Print Name): NORENE SMITH

Signature:  Date: 10/17/2023

Circuit Judge (Print Name): MARK A. PATE

Signature:  Date: 10/17/2023

Additional Info: SEX OFFENDER REGISTRATION
NO CONTACT WITH VICTIM THROUGH OUT PROBATION

concurrent with 43 LR 22-474